

Chapter 21

VEHICLES FOR HIRE*

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ARTICLE I. IN GENERAL

Secs. 21-1–21-25. Reserved.

ARTICLE II. TAXICABS†

DIVISION 1. GENERALLY

Sec. 21-26. Definition.

For the purposes of this article, the term “taxicab” means any rubber-tired motor vehicle having a manufacturer’s rated seating capacity of not more than seven (7) persons, used in the call and demand transportation of passengers for compensation to or from points chosen or designated by the passengers and not operated on a fixed schedule between fixed termini, or any such vehicle leased or rented, or held for leasing or renting, with or without drivers or operators, except motor vehicles subject to regulation by the state public service commission.

(Ord. No. 200, § 1, 7-9-80)

***Cross references**—Licenses and business regulations, Ch. 8; vehicles for hire restricted in public parks and recreation areas, § 12-78; streets, sidewalks and other public places, Ch. 16; traffic and motor vehicles, Ch. 19.

†Cross reference—Vehicles for hire restricted in public parks and recreation areas, § 12-78.

Sec. 21-27. Parking, stopping or soliciting passengers.

No taxicab shall be allowed to stand or wait for passengers in any street, square or public place except on such portions thereof and during such hours as have been or may be designated therefor by the traffic committee. No taxicab shall be stopped to take on or to discharge passengers at any place or on any street, square or public place except at the curb or as near thereto as possible. No passenger shall be permitted to enter or leave the vehicle except from the side nearest the curb. No taxicab shall cruise or be driven upon the streets of the city for the solicitation of business, and public streets shall not be used for the servicing, repairing, washing, or cleaning of taxicabs nor shall taxicabs in any way interfere with the free passage of pedestrian or vehicular traffic while standing for the purpose of discharging or taking on passengers.

(Ord. No. 200, § 8, 7-9-80)

Sec. 21-28. Exclusive use.

No driver of a taxicab shall carry any other person than passengers employing such cab, and no other passenger may be carried in an engaged taxicab without the consent of the first passenger. Any taxicab agent or driver before directing a second passenger to a taxicab employed shall ask the first person employing the taxicab for consent to add another passenger or passengers.

(Ord. No. 200, § 9, 7-9-80)

Secs. 21-29–21-40. Reserved.**DIVISION 2. LICENSES****Sec. 21-41. Required.**

No person shall operate, or cause to be operated, a taxicab within the city unless licensed as herein provided. The city manager is authorized to approve taxicab licenses in accordance with the provisions of this division. The taxicab license shall be issued by the city clerk upon approval of an application by the city man-

ager and the applicant paying the fee prescribed by the city's current license, permit and service fee schedule.
(Ord. No. 295, § 1, 11-9-88)

Sec. 21-42. Applications.

Application for a taxicab license shall be made on forms provided by the city, and shall set forth the name and address of the applicant, the trade name under which the applicant does or proposes to do business, where proposed stands and garages are to be located, the number of vehicles the applicant desires to operate with a clear description of each vehicle, and such other facts as the city manager may require.
(Ord. No. 200, § 3, 7-9-80)

Sec. 21-43. Financial responsibility.

It shall be unlawful to operate a taxicab for hire or permit the same to be operated, nor shall any license be issued under this division, until and unless the applicant for license deposits with the city manager a policy or certificate of liability insurance for each taxicab for which a license is sought, such policy or certificate of liability insurance to be acceptable and approved by the city solicitor and issued by a company authorized to do business in the state indemnifying the applicant in the sum of at least twenty thousand dollars (\$20,000.00) for injury to one (1) person or forty thousand dollars (\$40,000.00) for injury to more than one (1) person and five thousand dollars (\$5,000.00) property damage in any one (1) accident, through or by the operation of the taxicab of the applicant; or deposits in lieu thereof the bond of a surety company authorized to do business in the state running to the city and indemnifying persons who may be injured, or whose property may be damaged by the operation of such taxicab in the same amounts and conditioned that action may be brought thereon by any person so damaged against such surety company for the amount of such damage up to the amount named therein, such bond to be approved by the city solicitor. The policy of insurance or bond so deposited shall contain a clause obligating the company issuing the same to give ten (10) days' written notice before cancellation thereof to the city clerk. The license for the operation

of such taxicab shall automatically expire upon the lapse or termination of such policy or bond.

(Ord. No. 200, § 4, 7-9-80)

Sec. 21-44. Expiration.

Expiration of taxicab licenses issued under this division shall be on April 30.

(Ord. No. 200, § 5, 7-9-80)

Sec. 21-45. Not transferrable.

No license for the operation of a taxicab shall be sold, transferred, or assigned. No license granted under this division shall apply to any taxicab except the particular one designated therein, by motor number, serial number or other identification.

(Ord. No. 200, § 6, 7-9-80)

Sec. 21-46. Markings.

Every taxicab licensed under this division shall be conspicuously marked as a public taxicab and the license issued with respect to each taxicab shall be conspicuously posted therein and rates established by each taxicab company shall be conspicuously posted in each taxicab.

(Ord. No. 200, § 7, 7-9-80)

Sec. 21-47. Suspension and revocation.

(a) The city manager is authorized to revoke any taxicab license if, after notice and hearing, he finds:

- (1) The person holding such license, or any principal owner, officer or manager of the firm or corporation holding the license, or the corporation holding the license, is convicted of any felony, any crime involving actual or threatened bodily harm, any sexual offense, substance abuse or a violation of this article.
- (2) One (1) or more drivers of taxicabs under that license are convicted of a series of traffic violations which make it reasonably probable that the holder of the license is not

exercising the supervision necessary to protect the safety of persons hiring taxicabs operated under that license.

- (3) The applicant for the taxicab license has furnished false information to any city official or employee in the application for that license or pertaining to the drivers or operation of taxicabs under that license.

(b) The city manager is also authorized to suspend, for not more than five (5) days, any taxicab license, if he has probable cause to believe that there are grounds to revoke the license. (Ord. No. 295, § 1, 11-9-88)

Sec. 21-48. Violations.

(a) The violation of any provision of this chapter shall be punished by a fine not to exceed one hundred dollars (\$100.00) per day, or the revocation of the taxicab vehicle license, taxicab driver's license, or a combination of any of the three (3).

(b) Each act of violation and every day upon which any such violation shall occur shall constitute a separate offense. The city may enjoin or abate any violation of this chapter by appropriate action. In addition to the penalty set forth in this chapter, if the court finds for the city, the city shall recover its costs of suit including reasonable experts' fees, attorneys fees, and necessary investigative costs.

(c) *Unlicensed operation.*

- (1) *First offense.* The owner of the unlicensed vehicle shall be punished by a fine of one hundred dollars (\$100.00).
- (2) *Second offense.* The owner of the unlicensed vehicle shall be punished by a fine of five hundred dollars (\$500.00).
- (3) *Third offense.* The owner of the unlicensed vehicle shall be punished by a fine of one thousand dollars (\$1,000.00). In addition, the police department shall, and is hereby authorized to, seize or immobilize any taxicab located within the city operating without a valid taxicab license for the third time. Upon such seizure or immobilization, the police department shall notify the owner of the vehicle of such seizure, the reason therefore, and of the

place to which such vehicle has been removed or immobilized. The police department shall order the holding of any such vehicle for a period of not less than ten (10) business days from the date of the required notification to the owner. During this period, the owner may redeem any such vehicle by correcting the violation of this chapter which led to such seizure and paying all fines. Any taxicab which is impounded or immobilized and which is not redeemed within thirty (30) days of the date of notification as described in this section shall become the property of the city. Cost for towing, storage charges, associated attorneys fees and accumulated fines will be billed to the owner of the taxicab seized and must be paid in full before the release of the vehicle to the owner who shall be responsible for removing the vehicle from storage. The city will be held harmless for any damage occurring during the act of confiscation, transportation, storage, and/or immobilization of each vehicle.

(Ord. No. 624, § 1, 6-12-2024)

Secs. 21-49—21-60. Reserved.

DIVISION 3. DRIVER'S LICENSE

Sec. 21-61. Required.

No person shall drive a taxicab within the city, except for occasional trips into the city by taxicabs licensed outside the city and where the point of origin was outside the city, unless licensed as herein provided. The city manager is authorized to approve taxicab driver's licenses in accordance with the provisions of this division. The taxicab driver's license shall be issued by the city clerk upon approval of an application by the city manager and the applicant paying the fee prescribed by the city's current license, permit and service fee schedule.

(Ord. No. 295, § 1, 11-9-88)

Sec. 21-62. Application.

Every application for a taxicab driver's license shall be on a form provided by the city and shall contain the following information for the applicant:

- (1) Name.
- (2) Current address.
- (3) All addresses within the prior three (3) years.
- (4) Age.
- (5) Social Security number.
- (6) A statement that the applicant is a citizen of the United States or proof that the applicant has a legal right to reside and work in the United States.
- (7) A statement that the applicant holds a current driver's license, the number of that license, and the date it expires.
- (8) A list of all felony convictions, for which his record has not been annulled, stating the offense, date of conviction, court where the conviction occurred and the sentence imposed.
- (9) A list of all misdemeanor and offense convictions, for which his record has not been annulled, within the past seven (7) years, stating the offense, date of conviction, court where the conviction occurred and the sentence imposed.
- (10) A statement from a physician, licensed to practice in the state, that he has examined the applicant and finds that the applicant is physically and mentally capable of driving a taxicab safely.
- (11) A signed and witnessed consent form authorizing the police chief to obtain all criminal and medical records, including mental health records, pertaining to the applicant.

(Ord. No. 295, § 1(a), 11-9-88; Ord. No. 300, § 1, 1-4-89)

Sec. 21-63. Investigation.

Prior to approving an application for a taxicab driver's license, the city manager shall refer the application to the police department for an investigation and report. The report shall confirm that the applicant's driver's license has not been revoked or suspended and that the applicant's list of convictions is correct, or list the convictions not reported on the application. (Ord. No. 295, § 1(b), 11-9-88; Ord. No. 300, § 1, 1-4-89)

Sec. 21-64. Issuance; revocation; suspension.

Taxicab driver's licenses shall be issued only to persons who:

- (1) Are more than eighteen (18) years old.
- (2) Are citizens of the United States or who have a legal right to reside and work in the United States.
- (3) Hold a current driver's license.
- (4) Have no felony convictions, for which his record has not been annulled.
- (5) Have no misdemeanor convictions involving actual or threatened bodily harm, prohibited sexual activity or substance abuse, for which his record has not been annulled, within the past seven (7) years.
- (6) Do not have a record of motor vehicle offenses which demonstrate that he is a probable safety risk.
- (7) Are physically and mentally capable of driving a taxicab.
- (8) Can read, write and speak the English language intelligently.

(Ord. No. 295, § 1(c), 11-9-88)

Sec. 21-65. Expiration.

All taxicab driver's licenses shall be issued for a period of not more than one (1) year and shall expire on April 30 next after the date of issuance.

(Ord. No. 295, § 1(d), 11-9-88)

Sec. 21-66. Revocation.

The city manager is authorized to revoke any taxicab driver's license if he, after notice and hearing, finds that the holder thereof has supplied false information in the application or no longer meets the requirements set forth in section 21-64.
(Ord. No. 295, § 1(e), 11-9-88)

Sec. 21-67. Suspension.

The city manager is also authorized to suspend, for not more than five (5) days, any taxicab driver's license if he has probable cause to believe that there are grounds to revoke the license.
(Ord. No. 295, § 1(f), 11-9-88)

